

Chief Justice's Court

Case :- WRIT - C No. - 52927 of 2014

Petitioner :- Neelam Sharma

Respondent :- U.P. Purvanchal Vidut Vitran Nigam And 2 Others

Counsel for Petitioner :- Ajeet Kumar Singh

Counsel for Respondent :- Mahboob Ahmad

Hon'ble Dr. Dhananjaya Yeshwant Chandrachud, Chief Justice
Hon'ble Pradeep Kumar Singh Baghel, J.

The petitioner has sought the grant of connection for electricity in respect of House No. 48/133 situated at Old Lasker Line, Old Bairhana, Pargana and Tehsil Sadar, Allahabad. The electricity connection has been denied on the ground that there is a dispute between the petitioner and one Kamlesh Kumar and it appears that the petitioner has filed a declaratory suit which is pending before the Civil Judge (Senior Division), Allahabad.

The issue which arises in these proceedings has been considered in a reasoned judgement of this Court in **Smt. Sushama Chowdhary Vs U.P. Power Corporation Ltd. Thru. Chairman & 4 Ors.**¹ decided on 24 September 2014. The Division Bench has considered the provisions of Section 43 of the Electricity Act, 2003 as well as the relevant provisions of the Electricity Supply Code, 2005².

Having regard to the earlier decision in **Smt. Sushama Chowdhary (supra)**, we dispose of the writ petition in the following terms;

¹ Misc. Bench No. 9588 of 2014

² The Code, 2005

Having due regard to the provisions of clause 4.2 of the Code 2005, we direct that on the petitioner's filing an indemnity bond with the second respondent, the second respondent shall take necessary steps in accordance with law for the grant of an electricity connection to the petitioner. However, we express to clarify that by these proceedings this Court has not expressed any opinion on the merits of the civil dispute, if any, between the petitioner and parties to the Civil Suit which is pending before the Trial Court.

The petition is, accordingly, disposed of.

There shall be no order as to costs.

Order Date :- 13.10.2014

DS/-

(Dr. D.Y. Chandrachud, C.J.)

(P.K.S. Baghel, J.)